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File No.: EXP202300261 (PS/00118/2023)

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Catalan Data Protection Authority on November 16, 2022. Since the entity that allegedly may have violated data protection regulations is outside the scope of action of the Catalan Data Protection Authority, in accordance with the provisions of Article 156 of Organic Law 6/2006, of July 19, reforming the Statute of Autonomy of Catalonia and Article 3 of Law 32/2010, of October 1, of the Catalan Data Protection Authority, the aforementioned issue is referred to this Agency, having been received on November 16, 2022. The complaint is directed against the political party INDEPENDENTS DE VALLROMANES with NIF G63674006 (hereinafter, IVALL). The reasons on which the complaint is based are as follows: The publication on ***SOCIAL NETWORK.1, by the profile ****PROFILE.1 of images of a court ruling (presumably issued in 20XX) from the Court (...). In the images of the ruling, the name and surname of the complainant are visible, although data such as the identity of the victim or the details of the sentence have been concealed.

Along with the complaint, the following is provided:

- Images of the publication on ***SOCIAL NETWORK.1 of the court ruling. In these images, the logo of the respondent appears next to the designation of the profile ****PROFILE.1".

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was referred to IVALL for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The referral, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on January 23, 2023, as stated in the certificate in the file.

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The referral was reiterated on January 23, 2023, by certified postal mail, which was again returned due to absence.

No response has been received to this referral letter.

THIRD: On February 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: As stated in the diligence dated May 6, 2024, in the file, the publication of the ruling on ***SOCIAL NETWORK.1 remains.

FIFTH: On May 13, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against IVALL, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR, in which it was indicated that they had a period of ten days to submit allegations.

Furthermore, the aforementioned initiation agreement ordered the respondent to adopt the provisional measure consisting of removing the publication on its ***SOCIAL NETWORK.1 account of the ruling from the Court (...). This provisional measure was to be adopted within a maximum period of ten working days from the notification of the initiation agreement of the sanctioning procedure.

This initiation agreement, which was sent to IVALL in accordance with the LPACAP by certified postal

mail, was returned as "absent" after two attempts at notification were made in the manner provided for in Article 42.2 of the LPACAP, as stated in the acknowledgment of receipt in the file.

Finally, a notification announcement was published in the BOE on July 18, 2024, with ID:

***NUMBER.1, in accordance with the provisions of Article 44 of the LPACAP, granting a period of ten working days counted from the day following the publication of the announcement for the respondent to request a copy of the document corresponding to the indicated administrative act.

Having not appeared within the established period for this purpose, the notification is understood to have been made for all legal purposes from the day following the expiration of the maximum period indicated for appearance, in this case, August 2, 2024.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

SEVENTH: After the deadline for adopting the provisional measure agreed upon on August 19, 2024, this Agency accessed IVALL's ***SOCIAL NETWORK.1 account and verified that the publication subject to the complaint remained accessible.

EIGHTH: On November 15, 2024, the instructing body of the sanctioning procedure formulated a resolution proposal, in which it proposes that the Director...

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of the AEPD sanctions IVALL, with NIF A16018269, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of 2,000.00 euros (two thousand euros).

This proposed resolution, which was sent to IVALL in accordance with LPACAP via certified postal mail, was returned as "absent" after two attempts at notification were made in the manner provided for in Article 42.2 of the LPACAP, as noted in the acknowledgment of receipt that is part of the file.

Finally, a notification announcement was published in the BOE on January 29, 2025, with ID:

***NUMBER.2, as provided for in Article 44 of the LPACAP, granting a period of ten working days from the day following the publication of the announcement for the party being claimed against to request a copy of the document corresponding to the indicated administrative act.

NINTH: Once the proposed resolution was notified in accordance with the rules established in the LPACAP and the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the party being claimed against.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In minor offenses trial XXX/20YY, the Court (...) (Barcelona) issued judgment no. (...) on the (...).

SECOND: On May 12, 2021, the aforementioned judgment was published on the account of ***SOCIAL NETWORK.1 "****PROFILE.1": ***URL.1 (pages 8 and 9 of the file), where data such as the complete account of the facts that led to the (...), the Court and case number, as well as the data of other identifiable persons, are recorded, (...).

THIRD: As can be verified in the diligence dated May 6, 2024, contained in the file, this Agency confirms that the judgment referred to in Proven Fact First is still published on the account of ***SOCIAL NETWORK.1 referred to in Proven Fact Second.

FOURTH: By agreement to initiate sanctioning procedure dated May 13, 2024, the party being claimed against was ordered to adopt the provisional measure consisting of the suspension of the publication on its account of ***SOCIAL NETWORK.1 of the judgment of the Court (...). This provisional measure was to be adopted within a maximum period of ten calendar days from the notification of the agreement to initiate the sanctioning procedure.

As of September 20, 2024, the publication subject to the claim remained accessible on the account of ***SOCIAL NETWORK.1 referred to in Proven Fact Second.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there has been a processing of personal data, since IVALL published on its account of ***SOCIAL NETWORK.1 a series of data of natural persons contained in a court judgment.

IVALL carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 5.1.c) of the GDPR establishes, as one of the principles relating to processing, the principle of data minimization.

III

Principle of Data Minimization

Article 5.1.c), "Principles relating to processing," of the GDPR establishes:

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"Article 5 of the GDPR establishes that personal data shall be:

"a) [...]

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

[...]

The data controller shall be responsible for compliance with the provisions of paragraph 1 and able to demonstrate it ('proactive accountability')."

Regarding the claimed facts, there is evidence that the data processing carried out by IVALL by publishing, through its account on the social network ***SOCIAL NETWORK.1, a series of personal data of the claimant existing in a court ruling, such as the complete account of the facts that led to the (...), the Court and case number, as well as the data of other identifiable persons, (...) data that are not precise for the effective exercise of the freedom of information, has been carried out contrary to the principle of data minimization.

It is worth mentioning the considerations regarding the principle of data minimization made by the European Data Protection Board (EDPB), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation, attributed by Article 70 of the GDPR, adopted on October 20, 2020, Guidelines 4/2019 on Article 25 Data Protection by Design and by Default (https://edpb.europa.eu/system/files/2021-04/edpb_guidelines_201904_dataprotection_by_design_and_by_default_v2.0_es.pdf).

In paragraph 76 of these guidelines, it is established that:

"Essential elements from design and by default regarding data minimization may include the following:

- Data avoidance: All processing of personal data shall be avoided when possible to fulfill the relevant purpose.

- Limitation: The amount of personal data collected shall be limited to what is strictly necessary for the intended purpose.

(...)

- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.

- Necessity: Each category of personal data shall be necessary for the specified purposes and shall only be processed if it is not possible to fulfill the purpose by other means.”

From the application of these characteristics, it is deduced that the publication made by IVALL on its account of ***SOCIAL NETWORK.1 of the data of the claimant, nor (...) who have intervened in the criminal process; personal data that are not necessary or relevant for the information intended to be disclosed, implies that the data processing has not been adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.

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On the other hand, the status of (...) of the claimant does not exempt them from the application of data protection regulations, as the events occurred within the private sphere of the claimant (...) of the controversial publication of the ruling on the profile of ***SOCIAL NETWORK.1 of IVALL.

In accordance with the evidence available at this moment of the proposed resolution of the sanctioning procedure, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violation of Article 5.1.c) of the GDPR.

IV

Classification of the infringement of Article 5.1.c) of the GDPR

The aforementioned infringement of Article 5.1.c) of the GDPR constitutes the commission of one of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Infringements considered very serious” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall be subject to a limitation period of three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

V

Sanction to be imposed

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of

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Resolution of sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions established in Article 5.1.c) of the GDPR, allows for the imposition of a fine of €2,000 (two thousand euros).

VI

Imposition of measures

In accordance with the provisions of Article 58.2 d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”, IVALL is ordered to, within 10 working days from the date this resolution becomes final and enforceable, provide this Agency with proof of the adoption of the following measures:

- Withdrawal of the publication of the judgment from the Court (...).

It should be noted that, in the agreement to initiate this sanctioning procedure, it was agreed to impose as a provisional measure the withdrawal of the publication of the aforementioned judgment, for which a maximum period of 10 working days was granted from the day of notification of the agreement to initiate the sanctioning procedure. Therefore, in order to safeguard and guarantee the rights and freedoms of the complaining party, it is agreed to elevate the provisional measure imposed to definitive status.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with the measures imposed by this body in the present resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on INDEPENDENTS DE VALLROMANES (IVALL), with NIF G63674006, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €2,000.00 (TWO THOUSAND euros).

SECOND: TO CONFIRM, elevating it to definitive status, the provisional measure imposed on INDEPENDENTS DE VALLROMANES (IVALL), with NIF G63674006, whose compliance must be evidenced within a period of ten days, starting from the day following the notification of this resolution of the sanctioning procedure:

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- Withdrawal of the publication of the account of ***SOCIAL NETWORK.1 “***PROFILE.1”, the judgment of the Court (...).

THIRD: NOTIFY this resolution to INDEPENDENTS OF VALLROMANES (IVALL).

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. It is warned to the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each

month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

Against this resolution, which concludes the administrative route in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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